

PLACER COUNTY SUPERIOR COURT
THURSDAY, CIVIL LAW AND MOTION
DEPARTMENT 3
THE HONORABLE MICHAEL W. JONES
TENTATIVE RULINGS FOR JULY 9, 2026, AT 8:30 A.M.

3. S-CV-0051662 MARMOL, RUVIM v. AMERICAN HONDA MOTOR

Defendant's Motion for Summary Judgment, or in the Alternative, Summary Adjudication

Preliminary Matters

Both parties objections are overruled in their entirety.

The court observes defendant's separate statement in support of its motion does not comply with California Rules of Court, Rule 3.1350 because it does separately identify "each cause of action, claim for damages, issue of duty, or affirmative defense that is the subject of the motion." (Cal. Rules of Court, rule 3.1350, subd. (d).) The court admonishes defendant to adhere to the applicable California Rules of Court for future filings.

Ruling on Motion

Defendant moves for summary judgment or, in the alternative, summary adjudication as to plaintiff's complaint. A motion for summary judgment may be granted if "all the papers submitted show that there is no triable issue as to any material fact and the moving party is entitled to a judgment as a matter of law." (Code Civ. Proc. § 437c, subd. (c).) This is compared to summary adjudication that requires a showing that there is no merit to one or more of the causes of action. (*Id.* at § 437c, subd. (f)(1).) A motion for summary adjudication proceeds "in all procedural respects as a motion for summary judgment." (*Id.* at § 437c, subd. (f)(2).) In reviewing either motion, the trial court must view the supporting evidence, and inferences reasonably drawn from such evidence, in the light most favorable to the opposing party. (*Aguilar v. Atlantic Richfield Company* (2001) 25 Cal.4th 826, 843.) Defendant, as the moving party, bears the initial burden of establishing that "one or more elements of the cause of action, even if not separately pleaded, cannot be established, or that there is a complete defense to the cause of action." (Code Civ. Proc. § 437c, subd. (p)(2).) Once that burden is met, the burden shifts to the "plaintiff to show that a triable issue of one or more material facts exists as to the cause of action or a defense." (*Ibid.*) Pursuant to the "golden rule" of summary judgments, "if it is not set forth in the separate statement, it does not exist." (*California-American Water Co. v. Marina Coast Water Dist.* (2022) 86 Cal.App.5th 1272, 1296.)

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First Cause of Action—Violation of Civil Code Section 1793.2,
Subdivision (d) and Fourth Cause of Action—Breach of Express
Written Warranty

A cause of action for violation of Civil Code section 1793.2, subdivision (d) and breach of express written warranty requires plaintiff to establish “(1) the vehicle had a nonconformity covered by the express warranty that substantially impaired the use, value or safety of the vehicle (the nonconformity element); (2) the vehicle was presented to an authorized representative of the manufacturer of the vehicle for repair (the presentation element); and (3) the manufacturer or his representative did not repair the nonconformity after a reasonable number of repair attempts (the failure to repair element).” (*Oregel v. American Isuzu Motors, Inc.* (2001) 90 Cal.App.4th 1094, 1101.)

Here, defendant meets its initial burden to show plaintiff cannot establish the first element because there was no nonconformity with plaintiff’s vehicle. (UMF Nos. 17, 21–24.) The burden therefore shifts to plaintiff to raise a triable issue of material fact. Plaintiff thereafter meets his burden to raise a triable issue of material fact that his vehicle contained nonconformities. (Disputed MF Nos. 23–24.)

However, defendant does not meet its initial burden as to the third element because plaintiff presented the vehicle at least two times regarding a check engine light issue that defendant thereafter failed to repair. (*Robertson v. Fleetwood Travel Trailers of California, Inc.* (2006) 144 Cal.App.4th 785, 799.)

Accordingly, defendant’s motion for summary adjudication is denied as to the first and fourth causes of action.

Second Cause of Action—Violation of Civil Code Section 1793.2,
Subdivision (b)

Civil Code section 1793.2, subdivision (b) requires that any good shall be served or repaired within 30 days. (Civ. Code, § 12793.2, subd. (b).)

Here, defendant meets its burden to establish that no services or repairs took longer than 30 days. (UMF No. 26.) The burden therefore shifts to plaintiff to raise a triable issue of material fact that a repair took longer than 30 days. Plaintiff, however, does not meet his burden to raise a triable issue of material fact.

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Accordingly, defendant's motion for summary adjudication is granted as to the second cause of action.

Third Cause of Action—Violation of Civil Code Section 1793.2,
Subdivision (a)(3)

Civil Code section 1793.2, subdivision (a)(3) requires defendant to "[m]ake available to authorized service and repair facilities sufficient service literature and replacement parts to effect repairs during the express warranty period." (Civ. Code, § 1793.2, subd. (a)(3).)

Here, defendant meets its burden to establish it had sufficient literature and replacement parts to effect repairs during the express warranty period. (UMF No. 27.) The burden therefore shifts to plaintiff to raise a triable issue of material fact. Plaintiff thereafter meets his burden to raise a triable issue of material fact that defendant failed to have sufficient literature and replacement parts to effect repairs during the express warranty period. (Disputed MF No. 27.)

Accordingly, defendant's motion for summary adjudication is denied as to the third cause of action.

Fifth Cause of Action—Breach of Implied Warranty of
Merchantability

A breach of implied warranty of merchantability requires plaintiff to establish the vehicle is not fit for the ordinary purposes for which the vehicle is used. (*Carver v. Volkswagen Group of America, Inc.* (2024) 107 Cal.App.5th 864, 878. Unlike a breach of express warranty, however, a breach of implied warranty of merchantability does not require the plaintiff to "the defective vehicle to an authorized representative of the manufacturer for repair and give the manufacturer a reasonable opportunity to fix the vehicle." (*Ibid.*)

Here, defendant meets its initial burden to show plaintiff cannot establish the vehicle is not fit for the ordinary purposes for which the vehicle is used. (UMF Nos. 17, 21–24.) The burden therefore shifts to plaintiff to raise a triable issue of material fact. Plaintiff thereafter meets his burden to raise a triable issue of material fact that his vehicle was not fit for the ordinary purposes for which it was used. (Disputed MF Nos. 23–24.)

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Accordingly, defendant's motion for summary adjudication is denied as to the fifth cause of action.

In sum, the motion for summary adjudication is granted as to the second cause of action and denied as to the first, third, fourth, and fifth causes of action. Thus, the motion for summary judgment is denied because defendant did not establish it was entitled to judgment as a matter of law.

4. S-CV-0051680 HOLMAN, JASMINE v. PETSMART

Proposed Intervenor Edward Ruffin and Jaimie Grayson's Motion to Intervene

Preliminary Matters

Defendant's objections are overruled.

Defendant's request for judicial notice is granted. Plaintiff's request for judicial notice is denied.

Ruling on Motion

Proposed intervenors Edward Ruffin and Jaimie Grayson move to intervene pursuant to the mandatory, and alternatively the permissive, intervention procedures found in Code of Civil Procedure sections 387, subdivisions (d)(1) and (2).

The mandatory intervention statute provides "The court shall, upon timely application, permit a nonparty to intervene in the action or proceeding if either of the following conditions is satisfied: (A) A provision of law confers an unconditional right to intervene. (B) The person seeking intervention claims an interest relating to the property or transaction that is the subject of the action and that person is so situated that the disposition of the action may impair or impede that person's ability to protect that interest, unless that person's interest is adequately represented by one or more of the existing parties." (Code Civ. Proc., § 387, subd. (d)(1).)

On the other hand, the permissive intervention statute provides: "The court may, upon timely application, permit a nonparty to intervene in the action or proceeding if the person has an interest in the matter in litigation, or in the success of either of the parties, or an interest against both." (Code Civ. Proc., § 387, subd. (d)(2).)